CITY OF OPA-LOCKA

"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
WEDNESDAY, April 10, 2019
7:00 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 7:00 p.m. on Wednesday, April 10, 2019 at the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew Pigatt, Vice Mayor Chris Davis, Commissioner Alvin Burke, and Commissioner Sherelean Bass. Also in attendance were: Acting City Manager Newall Daughtrey, City Attorney Vincent Brown, and City Clerk Joanna Flores. Commissioner Joseph L. Kelley was not in attendance.

3. INVOCATION:

The invocation was delivered by Commissioner Sherelean Bass.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

The following items were pulled from the Consent Agenda to be discussed separately under Action Items: deferred 13-5, 13-6, and 13-7 (Commissioner Burke); pulled 13-3 and 13-4 (Mayor Pigatt).

City Attorney Brown requested that the commission defer items 13-3 and 13-4 as the City is currently in litigation regarding the water bills.

It was moved by Vice Mayor Davis, seconded by Commissioner Bass to defer items 13-3 and 13-4.

There being no discussion, the motion to defer the items passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Not Present

Commissioner Bass	Yes
Mayor Pigatt	Yes

NEW ITEM:

A request was made to amend the agenda as follows:

14-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO TAKE IMMEDIATE ACTION AND ENTER INTO AN AGREEMENT WITH HERNANDEZ UNDERGROUND TO REPAIR A 12" SEWER GRAVITY MAIN IN THE AREA OF 1226 SHARAR AVENUE, IN AN AMOUNT NOT TO EXCEED $27,500.00; IN A FORM ACCEPTABLE TO THE CITY ATTORNEY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by City Clerk Flores.

Mayor Pigatt asked the manager how the item meets the requirements for an add-on.

Acting City Manager Daughtrey said it falls under an emergency for sewer repairs.

It was moved by Commissioner Bass, seconded by Vice Mayor Davis to amend the agenda to include the above resolution as item 14-1.

There being no discussion, the motion to amend the agenda passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Not Present
Commissioner Bass	Yes
Mayor Pigatt	Yes

14-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THE CITY CLERK TO ADVERTISE THE POSITION OF CITY MANAGER, AT A COST NOT TO EXCEED $_____, AND WITH A _____, 2019 DEADLINE FOR THE SUBMISSION OF APPLICATIONS, RESOLVING TO ADHERE TO THE CODE OF THE CITY OF OPA-LOCKA AND ITS PROCEDURES FOR THE HIRING OF A NEW CITY MANAGER; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Commissioner Burke*

The above resolution was read by City Clerk Flores.

Mayor Pigatt asked the attorney how the item meets the requirements for an add-on.

City Attorney Brown said it would have a fiscal impact to the manager's office.

It was moved by Commissioner Burke, seconded by Mayor Pigatt to amend the agenda to include the above resolution as item 14-2.

There being no discussion, the motion to amend the agenda failed by a 3-1 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Not Present
Commissioner Bass	No
Mayor Pigatt	Yes

7. APPROVAL OF AGENDA:

It was moved by Vice Mayor Davis, seconded by Commissioner Bass to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Not Present
Commissioner Bass	Yes
Mayor Pigatt	Yes

8. APPROVAL OF MINUTES:

Special Commission Meeting Minutes – March 4, 2019

It was moved by Vice Mayor Davis, seconded by Commissioner Bass to approve the minutes from the Special Commission Meeting of March 4, 2019.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Not Present
Commissioner Bass	Yes
Mayor Pigatt	Yes

9. DISTRICT ONE/DISTRICT TWO - COUNTY COMMISSIONER REPORT:

Larry Gardner, Commissioner Barbara Jordan's Office, District I, said that he does not have anything to report at this time, but will take any concerns the commission may have back to Commissioner Jordan.

10. PUBLIC PRESENTATION:

Javier Betancourt, Citizens Independent Transportation Trust (CITT), thanked the commission for inviting them today to provide an update on the half penny sales tax. In 2002, the city decided that additional revenues were needed to fund several projects that were going on and that is where the penny tax came from. The trust was created to keep watch over those funds and ensure that they were spent appropriately. The trust representative for this district is Oscar Braynon and he has served the district well. Since 2002, three point two billion dollars ($3,200.000.000.00)

has been generated from the penny; two thirds of that has gone to transit for capital, debt service, and operations. It also created the golden pass for seniors, the patriot pass for veterans and the free mover pass for downtown workers. There have been over forty two projects since the inception of the penny tax so it is beneficial to the community in many ways. The current focus is on community outreach and he is looking for opportunities to bring the information to the public.

11. CITIZENS' INPUT:

George Suarez, 1341 Dunad Avenue, Opa-locka, FL, said he has been coming to the meetings for three years now and is proud to say that something is being done to rectify the water bill problems. He thanked Michael Pizzi and Ben Khuene for working on behalf of the citizens.

Brian Dennis, 821 NW 54th Street, Miami, FL, said the picture he provided to the clerk to distribute to the commission is of the last man standing. He made mention of those in the photo that included Dante Starks, Michael Pizzi, Luis Santiago, and Terrence Pinder. He said they are responsible for wrecking the City and while you can hire who you want to represent you, it should not be those who have represented others who have done wrong to the City. A picture says a thousand words and with what is going on, the current commission is looking like the old commission with their decision making.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, said she knows legislation was passed for the red light cameras, but word needs to get out to the community so people can be more cautious in knowing the red cameras have been restored. She said she felt good when she was selected on the committee for the city attorney selection only to be told she could not be involved because of remarks she made about someone else on the committee. She said she has prevailed several times with lawsuits against the City and will not pursue that avenue this time because the City does not have the money or legal counsel.

Former Assistant City Manager Darvin Williams, 16900 NW 14th Avenue, Miami Gardens, FL, said he wanted to take the opportunity to speak because he found that working for the City, you don't have a voice and you take the voice of the city manager. First of all, he is not a nurse, he is an attorney and a graduate of George Washington University which is the 14th largest school for law in the nation. There he holds a Master's Degree in Public Health. He also holds a Master's Degree in Business Administration from the University of Miami. He said before he was terminated he was working on a number of things geared at bringing revenue into the City and he still would like to present these projects as they will bring in millions of dollars.

Ronika, 2350 NW 140th Street, Opa-locka, FL, asked if there was an update on when the funding will be released that the city manager spoke of at the last meeting and how will it be allocated. She also asked for clarity on what public safety looks like.

Natasha Ervin, 670 Dunad Avenue, Opa-locka, FL, said that she is concerned about what is going on with the commission because it looks like they are doing the same thing the previous commission was doing. They speak of transparency, but she had to hear in a meeting that the city manager sued the City after he told them he was going to drop his lawsuit. She is also concerned about the firing of Mr. Williams and why it was done; this looks like the Taylor regime part 2.

Mayor Pigatt asked the audience not to clap and maintain decorum.

Celia Pruitt, 2350 NW 141st Street, Opa-locka, FL, said she has some concerns about what is going on and is concerned about what she is seeing on the dais, it looks like a one man show when the commission should be working collectively.

Patricia Ellis, 1146 Dunad Avenue, Opa-locka, FL, said she does not see anywhere that states that she cannot clap during the meeting. She asked the mayor to show her what law or ordinance there is for this so that she can follow it. She said one of her relatives died who was a resident for seventy years and no one from the City came and paid their respects. While she appreciates that a resolution was sent, she expected the officials to come on behalf of the City. The constant firing of Mr. Daughtrey because he does not want to do what the commission wants him to do is not right. That is not how a good clean government is run.

Ernest Baker, 1025 Opa-locka Blvd, Opa-locka, FL, said he is having a hard time obtaining a homeowners permit to do work on his property. He spent all day on the fourth floor trying to resolve an issue he never knew he had. The permit prices are ridiculous and the City should be supportive of the residents and not giving them the runaround. He appreciates those that tried to help him out today.

Audrey Dominguez, 1147 Jann Avenue, Opa-locka, FL, said even though items 13-3 and 13-4 were withdrawn she wants to speak on it. She pays her bills every month and it is still reflecting a balance. She said it looks like the City is double dipping and that is wrong. Also, burglary is increasing and the police needs to do something about public safety. She is going to research and find out what is going on.

Enyer Robles, 80 Bahman Avenue, Opa-locka, FL, said since he has been coming to the meetings, he has been hearing bad things about this administration, but he has also heard good things. He said the hiring of Scott Israel is a bad move for the City and other alternatives should be found. He has been a resident for over ten years and would like to keep his family in the City, but more needs to be done in terms of public safety.

Cynthia Lewis, 1015 Sultan Avenue, Opa-locka, FL, said she has lived in the City for thirty two years and has never missed a water bill payment. She was told that the City is behind six months in water bills and she does not understand why. Even when she does not receive her bill, she makes a payment anyway. Now she is being told that she is behind and something needs to be done. The commission was voted in by the people and they need to work on behalf of the people.

Commissioner Bass said the public's concerns are her concerns and she asked that she be judged by who she is and not being labeled as the previous administration. She knows she was elected by the people and asked that the community get to know her as a person, grandmother, wife, and neighbor.

Commissioner Burke apologized to Sheriff Israel and said that he did not come to the City looking for a job. He was put over public safety and is just trying to work on behalf of the community.

Vice Mayor Davis apologized for any misunderstandings that the community may have with the commission. They dedicate their lives, and their time, and weekends to working on behalf of the community. He knows the community wants answers to certain issues, but they are working to resolve everything that is going on. He said the room is full tonight and he hopes this will continue because he noticed whenever there is negativity going on, the room is full, but when

positives things are happening, the room is empty. They will continue to work to move the City forward.

Mayor Pigatt thanked his colleagues for their comments and said they are working diligently to bring the City back because it is at a low point. There are a lot of issues and it will take time to address all of them. He encouraged the community to help the City to move forward. He asked the manager if there has been an announcement about the red light cameras.

Acting City Manager Daughtrey said no, but he will send out a notice to the public.

Mayor Pigatt said the City has a bad name in the media, but they are working to change that. He thanked the residents for participating in citizens' forum.

12. ACTION ITEMS:

13. CONSENT AGENDA:

1 (13-2). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO PIGGYBACK ON THE CITY OF NORTH MIAMI BEACH PROFESSIONAL SERVICES AGREEMENT (ITB 2016-074) WITH ARROW ASPHALT & ENGINEERING, FOR TEMPORARY RESTORATION OF NW 38TH AVENUE ROADWAY, IN AN AMOUNT NOT EXCEED $70,000.00, IN A FORM THAT IS ACCEPTABLE TO THE CITY ATTORNEY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

2 (13-3). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO TAKE IMMEDIATE ACTION AND ENTER INTO AN AGREEMENT WITH DIAMANTI CONSTRUCTION & DEVELOPMENT, INC., TO REPAIR THE ROOF AND EXTERMINATE FOR TERMITES AT HISTORIC CITY HALL, IN AN AMOUNT NOT TO EXCEED $32,000.00; IN A FORM THAT IS ACCEPTABLE TO THE CITY ATTORNEY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolutions were read by Attorney Brown.

It was moved by Commissioner Burke, seconded by Commissioner Bass to pass the resolutions.

The motion on the resolutions passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Not Present
Commissioner Bass	Yes
Mayor Pigatt	Yes

14. NEW ITEMS:

14-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO TAKE IMMEDIATE ACTION AND ENTER INTO AN AGREEMENT WITH HERNANDEZ UNDERGROUND TO REPAIR A 12" SEWER GRAVITY MAIN IN THE AREA OF 1226 SHARAR AVENUE, IN AN AMOUNT NOT TO EXCEED $27,500.00; IN A FORM ACCEPTABLE TO THE CITY ATTORNEY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Brown.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Bass, seconded by Vice Mayor Davis to pass the resolution.

There being no discussion, the motion on the resolution passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Not Present
Commissioner Bass	Yes
Mayor Pigatt	Yes

+15. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

16. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING ORDINANCE(S):

B. SECOND READING ORDINANCE(S)/PUBLIC HEARING:

C. RESOLUTIONS:

17. CITY MANAGER'S REPORT:

Acting City Manager Daughtrey said the clerk needs to poll the commission to determine when they want to interview for the city attorney position. The commission received a letter from the Joint Legislative Auditing Committee stating that the City has submitted all of its financial reports and all available funding that was being held will now be released. They will receive information on next week regarding when the funds will be released. Once that happens, it will be added to the budget amendment and the commission will determine how the funds will be spent. They are currently working on the 2017 audit and it is paramount that it is complete so they can receive remaining funds that have been held by the county.

18. OFFICIAL BOARD REPORTS:

19. MAYOR/COMMISSION REPORT:

Commissioner Bass said the Easter Fellowship will be held this coming Saturday from 2:30 – 4:30 p.m. and encouraged the community to come out. She also asked for volunteers to come out and assist with bagging the food for distribution.

Vice Mayor Davis said there will be a policy and procedures workshop on May 1, 2019 at Sherbondy Village and asked the public to come out and be involved in the process.

Acting City Manager Daughtrey said the signage workshop will be held next Wednesday for the citizens to know what the new signage ordinance is.

Mayor Pigatt said it is important that the audits are complete so funds can be released. He said a new city manager needs to be hired as soon as possible so that the City can move forward. He hopes a firm can be secured to aide in the process for hiring a permanent manager. He asked that a special meeting is called for this as soon as possible.

20. OFFICIAL BOARD APPOINTMENTS:

A motion was made to appoint Claudienne Hibbert to the Planning & Zoning Board of Appeals at-large.

It was moved by Vice Mayor Davis, seconded by Commissioner Burke to approve the appointment.

There being no discussion, the motion on the appointment passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Not Present
Commissioner Bass	Yes
Mayor Pigatt	Yes

A motion was made to appoint Natasha Ervin to the Community Relations, Recreation, and Activities Advisory Board at-large.

It was moved by Commissioner Burke, seconded by Vice Mayor Davis to approve the appointment.

There being no discussion, the motion on the appointment passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Not Present
Commissioner Bass	Yes
Mayor Pigatt	Yes

Andrew Hermon was appointed to the Civil Service Board by Commissioner Burke.

Mayor Pigatt encouraged the residents to apply for the Fair Housing and Nuisance Abatement Board.

21. ADJOURNMENT:

There being no further business to come before the commission, it was moved by Commissioner Burke, seconded by Vice Mayor Davis to adjourn the meeting at 8:19 p.m.

MAYOR

ATTEST:

CITY CLERK